

PR-25-000754 IN THE MATTER OF THE GEORGE GARY VENIOT LIVING TRUST - Petitioner Tawna Veniot's Motion to Appoint Receiver - GRANTED in part and DENIED in part.

County: stanislaus

Division: Probate

Department: 22

Hearing date: 2012-04-02

Motion: The Court finds that the parties' filings establish a substantial dispute concerning control and administration of the trust's principal asset, the real property located at 1921 Santina Court, Modesto, California. The Court further finds that the evidence regarding pending loss of homeowner's insurance coverage creates a sufficient showing that the property may suffer loss or injury absent court intervention. Pursuant to Code of Civil Procedure section 564 and Probate Code section 15642, the Court appoints a receiver over the property. The receiver shall have authority to: 1. Take control of and preserve the property; 2. Obtain access to the property; 3. Arrange for reasonable maintenance, repairs, and insurance; 4. Collect information concerning the property's condition and value; 5. Report to the court regarding the status of the property and any actions reasonably necessary to preserve it. The Court declines at this time to authorize marketing or sale of the property. Any request to sell the property shall be made by noticed motion or application supported by evidence demonstrating that a sale is necessary and in the best interests of the trust and interested persons. The proposed receiver, Laurie Jamison, is approved subject to the filing of any required oath and bond. The Court reserves allocation of receivership fees and costs until further order. Petitioner to prepare and submit within five court days a proposed order that is consistent with this ruling.

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